

25STCP04568 25STCP04568

County: los-angeles

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Case Number: 25STCP04568 Hearing Date: August 5, 2026 Dept: 833

Alex G. Romain, Case No. 25STCP04568

Hearing:

August 5, 2026

v. Location:

Stanley Mosk Courthouse

Department:

833 Harvard Westlake School Judge: Joseph

Lipner

Order Regarding

Discovery Motions

INTRODUCTION

Petitioner Alex G. Romain ("Petitioner") seeks an order deeming admitted the truth of matters specified in Petitioner's First Set of Requests for Admission ("RFA") propounded on Real Party in Interest B.B. The Court GRANTS this request.

Respondent Harvard-Westlake School ("Harvard-Westlake") moves for an order staying and quashing Petitioner's Notice of Deposition of Person Most Qualified for Respondent Harvard-Westlake's Request for Production of Documents, or in the alternative, a Motion for the Protective Order. The Court DENIES the Motion to Quash. The Court GRANTS the Motion for a Protective Order with respect to Topic 11(a)-(c) but otherwise DENIES the motion.

PETITIONER'S
REQUESTS FOR ADMISSION MOTION

A.

Requests for Admission Legal Standard

A party served with requests for admission must respond within 30 days. (Code Civ. Proc., § 2033.250, subd.

(a).) If a party to whom requests for admission are directed fails to serve a timely response, that party has waived any objection to the requests, including ones based on privilege or on the protection for work product. (Code Civ. Proc., § 2033.280, subd. (a).) The requesting party may move for an order that the genuineness of any documents and the truth of any matters specified in the requests be deemed admitted, as well as for a monetary sanction. (Code Civ. Proc., § 2033.280, subd.

(b).) It is mandatory that the court impose a monetary sanction “under Chapter 7 (commencing with Section 2023.010)” on the party or attorney whose failure to serve a timely response to requests for admission necessitated a motion to deem RFAs admitted. (Code Civ. Proc., § 2033.280, subd. (c).)

B.

Analysis

B.B.

was served on May 13, 2026 and was required to respond no later than Jun 16, 2026. (Romain Decl. ¶¶ 3–4.) B.B. served no response, has served nothing since, and has not sought an extension. (Romain Decl. ¶¶ 5–6.) Because of B.B.'s lack of response, the statute requires the Court to grant the motion to deem the RFAs admitted.

Petitioner

asks that the Court waive a monetary sanction. (Romain Decl., ¶ 7.) The statute says, “it is mandatory that the court impose a monetary sanction under Chapter 7 (commencing with Section 2023.010) on the party. . . whose failure to serve a timely response to requests for admission necessitated this motion.” (Code Civ. Proc., § 2033.280, subd. (c).) Despite the mandatory language in the statute, the Court does not impose sanctions for two separate and independent reason. First, a

reasonable interpretation of that section is that it is mandatory when requested—not that the moving party is forbidden to waive the sanctions. Moreover, these sanctions are to be awarded under Civil Procedure section 2023.010 et seq. Section 2023.030 provides that the sanctions shall be for “reasonable expenses, including attorney’s fees.” Here, Petitioner has no attorney’s fees as he is representing himself. Moreover, he has not submitted evidence of his expenses. Accordingly, no sanctions are appropriate here.

HARVARD-WESTLAKE’S
MOTION TO QUASH DEPOSITION OF PMQ

A.
Legal Standard

Code
of Civil Procedure section 2025.230 requires that, where a deposition notice names an organization as the deponent, the notice “shall describe with reasonable particularity the matters on which examination is requested.” The organization must then designate and produce those officers, directors, managing agents, employees, or agents most qualified to testify on its behalf regarding those matters, to the extent of information known or reasonably available to the organization. (Code Civ. Proc., § 2025.230.)

Code
of Civil Procedure section 2025.410 permits a party served with a defective deposition notice to serve a written objection at least three calendar days before the deposition. The objecting party may then move for an order staying the deposition and quashing the deposition notice. (Code Civ. Proc., § 2025.410, subds. (a), (c).) The taking of the deposition is stayed pending determination of that motion. (Code Civ. Proc., § 2025.410, subd. (c).)

Code
of Civil Procedure section 2025.420 separately authorizes the Court, for good cause, to make any order that justice requires to protect any party, deponent, or other affected organization from unwarranted annoyance, embarrassment, oppression, or undue burden and expense. Such orders may include that the deposition not be taken at all, that it be taken only on specified terms and conditions, that testimony be taken by written examination, or that another discovery method be used instead of oral deposition. (Code Civ. Proc., § 2025.420, subd. (b)(1), (5)-(7).)

B.

Motion to Quash Analysis

Harvard-Westlake

objects to the First Amended Notice on the grounds that it seeks testimony into investigations, privilege-log issues, litigation anticipation, retained investigators/consultants, counsel-directed matters, and overbroad multi-year communications. (Motion, 3:18-25.)

As

an initial matter, it is unclear why Harvard-Westlake seeks to quash the deposition notice. The motion identifies no notice defect under C.C.P. § 2025.410. The motion does not contend any PMQ topic lacks the “reasonable particularity” described in C.C.P. § 2025.230. The motion does not object to providing an appropriate witness on Topics 1, 2, 3, 8, and 9. (Motion, 5:19-20.) Thus, Harvard-Westlake’s motion to quash is DENIED.

C.

Motion for a Protective Order

Harvard-Westlake

also asks for a protective order under C.C.P. § 2025.420. When requesting a protective order, the burden of showing good cause rests on the moving party. (*Nativi v. Deutsche Bank National Trust Co.* (2014) 223 Cal.App.4th 261, 318.) An objection based upon burden must be sustained by evidence showing the quantum of work required, while an objection of oppression must be sustained based on a showing of either unreasonable burden or that the ultimate effect of the burden is incommensurate with the result sought. (*West Pico Furniture Co. of Los Angeles v. Superior Court In and For Los Angeles County* (1961) 56 Cal.2d 407, 417.)

As

a general matter, Harvard-Westlake has failed to meet their burden. The declaration accompanying Harvard-Westlake’s request contains no estimate of preparation hours, no count of necessary witnesses, no volume of records to review, and no identification of any specific record or communication that answering a topic would expose. Harvard-Westlake’s papers amount to generalized concerns about potential requests violating the attorney-client privilege or work product doctrine, but that is already addressed in the Notice of

Deposition: “no matter of examination seeks the content of any attorney-client communication, the content of any writing protected by the attorney work-product doctrine, or any opinion, mental impression, conclusion, or legal theory of Harvard-Westlake’s counsel.” (Yousefzadeh Decl., ¶ 2, Exh. A.)

Harvard-Westlake

offers no argument why they cannot simply object to particular questions during the deposition if they go beyond the just do what the Discovery Act allows them to do: object to a question during a deposition on the ground that it is privileged or protected work product. (Code Civ. Proc., § 2025.460, subd. (a).)

Harvard-Westlake’s

motion also purports to challenge particular topics. In the interests of justice, the Court discusses the individual topics Harvard-Westlake has laid out in their motion.

1.

Topic 1

Topic 1 requests:

The searches HARVARD-WESTLAKE conducted for records responsive to the PUPIL-RECORDS REQUESTS, including: (a) the persons whose files, devices, or accounts were searched; (b) the systems, locations, and sources searched (including email accounts, mobile devices, messaging applications, and paper files); (c) the date ranges searched; and (d) the search terms used, if any.

(Yousefzadeh Decl., ¶ 2, Exh. A.)

Harvard-Westlake contends that it should not be required to disclose search terms selected by counsel, attorney review methodology, privileged custodial decisions, or attorney mental impressions. The Court tends to agree that an attorney’s search terms should be off-limits and to the extent that Petitioner disagrees, the Court will discuss that issue with the parties at the hearing. In any event, no protective order is necessary as Harvard-Westlake can simply object at the deposition. Moreover, the deposition notice expressly does not ask for privileged information.

2.

Topics 4 and 5

Topic 4 requests:

For each INVESTIGATION: (a) the persons who conducted or participated in the INVESTIGATION; (b) the records the INVESTIGATION generated, including the categories of records created (for example, notes, witness statements or interview notes, reports or findings, and COMMUNICATIONS); and (c) the present custodian of those records.

(Yousefzadeh Decl., ¶ 2,
Exh. A.)

Topic 5 requests:

For each INVESTIGATION, whether HARVARD-WESTLAKE has produced to Petitioner: (a) the findings, report, or summary of the INVESTIGATION; (b) notes or other records of interviews of A.R.; and (c) notes or other records of interviews of other witnesses—in each case as HARVARD-WESTLAKE did for the INVESTIGATION described in Definition No. 7(g) (see HW_00052–HW_00054)—and, for each such record that has not been produced, whether the record exists.

(Yousefzadeh Decl., ¶ 2,
Exh. A.)

Harvard-Westlake, relying on *BRV, Inc. v. Superior Court* (2006) 143 Cal.App.4th 742, 747, argues that Topic 4 must be quashed in its entirety because it improperly treats investigative materials as pupil records. This argument puts the cart before the horse: that is a substantive issue to be decided at the trial of this matter. The Court declines to decide it in the context of a discovery motion or recognize this substantive argument as a reason not to provide discovery. Petitioner is entitled to take discovery on the existence of such records, and the question of whether the records must be produced under the Education Code will be decided at trial.

3.

Topic 6

Topic 6 requests:

The investigation conducted by investigator Lexi Zuidema following the February 2024 on-campus arrest of Lucca V., to the extent that investigation concerned A.R. or allegations concerning A.R., including:

- (a) whether the investigation concerned A.R. or allegations concerning A.R.;
- (b) the records the investigation generated concerning A.R., including notes or other records of interviews and any findings, report, or summary; and (c) whether HARVARD-WESTLAKE has produced each such record to Petitioner, as it did for the INVESTIGATION described in Definition No. 7(g) (see documents produced by Harvard-Westlake as A.R.'s pupil records, Bates-stamped HW_00052–HW_00054).

(Yousefzadeh Decl., ¶ 2,
Exh. A.)

Harvard-Westlake also argues that this topic may seek testimony regarding investigations, interview notes, retained investigator work, and records generated by investigative activity, which may include counsel-directed work product and attorney-client communications. (Motion, 9:7-9.) However, the Court sees no reason to enter a protective order. The existing deposition notice states that: “no matter of examination seeks the content of any attorney-client communication, the content of any writing protected by the attorney work-product doctrine, or any opinion, mental impression, conclusion, or legal theory of Harvard-Westlake’s counsel.” (Yousefzadeh Decl., ¶ 2, Exh. A.) No privileged information is required. Harvard-Westlake can object as necessary. .

Finally,
Harvard-Westlake argues that Investigation #6 (the inquiry into the allegations that Lucca V. sexually assaulted another athlete in the Harvard-Westlake pool on or about December 14, 2023, in connection with which inquiry A.R. was interviewed) is not actually about A.R. The deposition notice states, “Each matter for examination below concerns only A.R.—that is, records, information, and events relating to A.R.” The deposition notice is sufficient to address Harvard-Westlake’s concerns about sharing unrelated investigatory material.

4.
Topic 7

Topic 7 requests:

Each COMMUNICATION between HARVARD-WESTLAKE, on the one hand, and Petitioner, Melissa Romain, or A.R., on the other hand, concerning A.R.'s safety and welfare on the Harvard-Westlake campus or on the boys' water polo team; whether HARVARD WESTLAKE personnel took notes of, or otherwise memorialized, each such COMMUNICATION; the categories of records created; and whether each such record has been produced to Petitioner.

(Yousefzadeh Decl., ¶ 2,
Exh. A.)

Harvard-Westlake contends that preparing a PMQ witness to testify about oral and written communications over six years is likely to be unduly burdensome and expensive. However, on a motion for a protective order, the burden of showing good cause rests on the moving party. (*Nativi v. Deutsche Bank National Trust Co.* (2014) 223 Cal.App.4th 261, 318.) From Harvard-Westlake's papers and declaration, the Court has no idea whether "each communication" refers to 10 communications, 75 communications, 500 communications or any other number. Harvard-Westlake's papers also give no way for the Court to determine how many witnesses would be involved in responding to this request. Thus, it is impossible for the Court to evaluate whether this topic is likely to be unduly burdensome and expensive to Harvard-Westlake.

Therefore, the Court declines to issue a protective order on this topic.

5.

Topic 10

Topic 10 requests:

The date on which
HARVARD-WESTLAKE first anticipated litigation by or on behalf of A.R.

(Yousefzadeh Decl., ¶ 2,
Exh. A.)

Havard-Westlake offers to supply "a nonprivileged date" through a supplemental log, a written response, or a declaration. (Motion, § H.).

Harvard-Westlake's offer seems to indicate this information can be supplied without disclosing privileged content. And California law treats such timing facts as discoverable: the Supreme Court compelled an answer to when a party first consulted counsel—a fact about the relationship, not a communication within it. (*Coy v. Superior Court of Contra Costa County* (1962) 58 Cal.2d 210, 219-220.)

Therefore,
Topic 10 is a proper subject of a deposition.

6.
Topic 11

Topic 11 requests:

For each numbered entry on the PRIVILEGE LOG: (a) the number of distinct documents within the Bates range identified in each entry; (b) the date of each such document; (c) the author and each recipient of each such document; and (d) for each entry referencing a retained investigator or third-party consultant, the name and professional capacity of that investigator or consultant, the date the engagement began, and the identity of the person who initiated or authorized the engagement.

The
Court agrees that subsections (a)-(c) are too unwieldy for a PMQ deposition. A deposition on these subjects has the potential to invade the attorney-client privilege. To the extent that the privilege log is unsatisfactory, Petitioner can demand a better privilege log and bring the issue to the Court's attention if a problem remains.

The
one portion of Topic 11 that appears to be a legitimate subject for a deposition is subsection (d), which asks for foundational facts about the persons identified in the privilege log. A deposition on that subject can go forward.

CONCLUSION

The Court GRANTS the request to deem the RFAs admitted.

The Court DENIES the motion to quash. The Court grants the motion

for a protective order as to Topic 11(a)-(c) but otherwise denies the motion.

IT IS SO ORDERED.

Dated: August 5,
2026

Joseph
Lipner

Superior
Court Judge